

24TRCV02490 24TRCV02490

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Case Number: 24TRCV02490 Hearing Date: August 17, 2026 Dept: M

LOS ANGELES SUPERIOR COURT –
SOUTHWEST DISTRICT

Honorable Amy N. Carter Monday, August 17, 2026 Department M Calendar
No.

PROCEEDINGS

M.E.M.

Worldwide, Inc. v. General Motors, LLC, et al.

24TRCV02490

1. M.E.M. Worldwide, Inc.'s Motion for Attorneys' Fees

TENTATIVE RULING

M.E.M. Worldwide, Inc.'s Motion for Attorneys' Fees is
granted in part.

Background

Plaintiff filed the Complaint on July 29, 2024. Plaintiff alleges the following facts. Plaintiff purchased a 2022 Cadillac Escalade which was manufactured and distributed by Defendant. The vehicle suffers from defects. Defendant has not been able to repair the vehicle. Defendant has refused to repurchase the vehicle. Plaintiff alleges violations of the Song-Beverly Consumer Warranty Act ("Song-Beverly Act") and the Magnusson-Moss Warranty Act.

Motion for Attorneys' Fees

Civ. Code, § 1794(d) states: "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action."

Plaintiff moves for attorneys' fees and costs pursuant to Civ. Code section 1794(d) as the prevailing party in this action. Neither party disputes the contention that the settlement agreement provided that Plaintiff is the prevailing party and that the instant Court would determine the amount of reasonable attorneys' fees and costs. Thus, the Court will determine the amount of reasonable attorneys' fees and costs incurred via this noticed motion.

"The trial court has "broad authority" to determine the amount of [reasonable attorneys' fees]."

PLCM Group v. Drexler (2000)

22 Cal.4th 1084, 1095. "[T]he fee

setting inquiry in California ordinarily begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate." Id.

"California courts have consistently held that a computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys' fee award." Id.

"The experienced trial judge is the best judge of the value of professional services rendered in his court, and while his judgment is of course subject to review, it will not be disturbed unless the appellate court is convinced that it is clearly wrong." Ketchum v.

Moses (2001) 24 Cal.4th 1122, 1132 (internal quotation omitted.)

Thus, Plaintiff is entitled to attorneys' fees under the lodestar method based on the reasonable amount of time the attorney spent multiplied by a reasonable rate. Plaintiff requests \$197,288.89 in attorneys' fees (\$188,207.5) and costs (\$9,081.39). With the Reply, Plaintiff now requests an additional \$6,110.00 on top of the above amount for a total of \$203,398.89.

Plaintiff did not attach an actual full accounting of

the billing records in this action. Instead, Plaintiff attached as Exhibits E and F to the declaration of Jon Markarian a summary of the work expended, and fees incurred. (Decl., Jon O. Markarian, Exs. E and F). Plaintiff's counsel states that his hourly rate is \$650 per hour. (Id. at ¶ 16).

Defendant opposes the motion and argues that the time expended and hourly rates were excessive and not supported. Defendant contends that the Court should award a lesser amount since Plaintiff fails to establish that the fees are reasonable. *Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240. Defendant also argues that no multiplier should be awarded. Defendant concludes that Plaintiff should be awarded no more than \$9,130.47 in attorneys' fees and costs.

"The lodestar adjustment method requires the trial court first to determine a touchstone or lodestar figure based on actual time spent and reasonable hourly compensation for each attorney. The touchstone figure may then be augmented or diminished by taking various relevant factors into account, including (1) the novelty and difficulty of the questions involved and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; and (3) the contingent nature of the fee award, based on the uncertainty of prevailing on the merits and of establishing eligibility for the award. For Song-Beverly Consumer Warranty Act claims, [a] prevailing buyer has the burden of 'showing that the fees incurred were "allowable," were "reasonably necessary to the conduct of the litigation," and were "reasonable in amount." *Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 998 (internal citations and quotations omitted). "Just as a court has discretion to increase the lodestar under several factors in such a case, it may also decrease it by looking at those same factors, including [...] the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances in the case." *Graciano v. Robinson Ford Sales, Inc.* (2006) 144 Cal.App.4th 140, 160–161(internal quotations omitted).

The Court deems that, based on the nature of this case and the complexity of this case, the action does not warrant the addition of any multiplier or a deduction through the imposition of a negative multiplier. The Court finds that the hourly rate charged was excessive considering the nature of this case, the settlement amount, the attorneys' experience and background, the hourly rate in the community, and the type of work undertaken by counsel. The Court finds that

\$350/hour is a reasonable hourly rate for the type of work, case, and nature of this case.

The Court reduces the hours allegedly spent litigating this action as the hours requested are unduly excessive. The Court determines that the alleged hours expended – 234.4 hours including the time requested in the Reply - were unnecessary or unreasonable. The Court determines that the number of reasonable hours that should have been expended for this type of case is 48 hours. This number is inclusive of the time expended in preparing and appearing on the motion and the reply. However, the Court does not reduce the amount of costs requested. The costs that were outlined in the summary provided in Exhibit F all appear to be costs that are authorized to be recovered. In addition, as to the bulk of the costs related to the taking of the depositions of the PMKs, it cannot be stated that, at the time the depositions were taken, the depositions were not reasonably related to the litigation simply because the case eventually ended up settling.

The Court therefore finds that 48 hours is a reasonable amount of time expended at the hourly rate of \$350.00/hour (\$16,800), plus \$9,081.39 in costs, for a total amount of \$25,881.39.

Therefore, the Court grants Plaintiff's Motion for Attorneys' Fees and Costs, in part. Thus, the Court fixes reasonable attorneys' fees and costs in the amount of \$25,881.39.

Plaintiff is ordered to give notice of this ruling.